



L I C E N C E

is made the

13th

day of

B E T W E E N

JOHN GORE PHILLIMORE of 8 Bishopsgate in the City of

London Esquire THE HONOURABLE ROBERT GEORGE HUGH PHILLIMORE of The Mill

House Shiplake Henley-on-Thames in the County of Oxford a Colonel

(Retired) in Her Majesty's Army and SIMON JAMES MOSLEY of 28 Lincoln's

Inn Fields W.C.2. Solicitor (hereinafter called "the Licensors") of the

first part RIENZI FELIZ MORITZ FERNANDO of 12G Stuart Tower Maida Vale

London W.9. (hereinafter called "the Licensee") of the second part and

DR. CLAUDE TRISTRAM NEWNHAM and EVELYN MARY CORNWALL NEWNHAM (his Wife)

both of 14 Grove Road Beaconsfield in Buckinghamshire (hereinafter

called "the Underlessees") of the third part.

W H E R E A S :

(1) By a Lease (hereinafter called "the Lease") dated the Nineteenth day of December One thousand nine hundred and four and made between The Honourable Sir Walter George Frank Phillimore Bart (1) and Mr. William Adams Daw (2) all the premises known as 20 Hornton Street in the Royal Borough of Kensington and Chelsea (hereinafter called "the premises") were demised unto the said William Adams Daw for the term of Ninety-nine years from the Twenty-fifth day of March One thousand nine hundred and three at the yearly rent of Forty pounds subject to the lessee's covenants and conditions therein contained

(2) The premises are now vested in the Licensee for the unexpired residue of the said term of Ninety-nine years subject to the rent and lessee's covenants and conditions reserved by and contained in the Lease

(3) The reversion of the term granted by the Lease is now vested in the Licensors

(4) By a Licence (hereinafter called "the Licence") dated the Sixth day of July One thousand nine hundred and seventy-two and made between the Licensors of the one part and the Licensee of the other part the Licensors granted the Licensee a licence to convert the premises into two maisonettes and two flats as is more particularly described in the Licence

(5) By an Underlease (hereinafter called "the Underlease") dated the

27th day of March 1973

and made between the Licensee of the one part and the Underlessee of the other part All That the maisonette (hereinafter called "the maisonette")

on the ground and basement floors of the premises was underlet to the

Underlessees for a term commencing on the 27th day of March

One thousand nine hundred and seventy-three and expiring on the Nineteenth

day of March Two thousand and two (determinable nevertheless as in the Underlease provided) at the yearly rent of One hundred and fifty pounds subject to the Lessee's covenants and conditions therein contained

(6) The Licence contains a covenant whereby the Licensee will not permit the maisonette to be occupied otherwise than as a high class private residence in single family occupation (the expression "family" having its English meaning) and the Underlease contains a similar provision

(7) The Underlessees being desirous of using the single bedroom on the basement floor of the maisonette (hereinafter called "the consulting room") as a consulting room in connection with the practice of the said Dr. Claude Tristram Newnham as an Ophthalmic Surgeon the Licensee and the Underlessees have jointly requested the Licensors to permit the Licensee to grant the Underlessees a Licence for that purpose which the Licensors have agreed

N O W THIS DEED W I T N E S S E T H as follows :-

1. THE Licensors HEREBY PERMIT the Licensee to grant and the Licensors HEREBY GRANTS unto the Underlessees licence for the Underlessees during the residue of the term granted by the Underlease to use the consulting room in connection with the practice of the said Dr. Claude Tristram Newnham as an Ophthalmic Surgeon and to affix a plate with his name and qualification on the door on front of the demised premises such plate to be of a size and design and character approved by the Licensors and the Licensee but the plate shall not in any event be of a size which is larger than a rectangle with a length of ten inches and a breadth of six inches PROVIDED ALWAYS that this licence is personal to the Underlessees and shall not authorise any person in whom the consulting room may be vested for the whole or any part of the residue of the term granted by the Underlease or who may be in occupation of the same other than the Underlessees to use the same in connection with such practice as aforesaid without a further licence from the Licensors and the Licensee who shall be at liberty to grant or withhold the same as they shall think fit

2. THE Licensee and the Underlessees HEREBY JOINTLY AND SEVERALLY COVENANT with the Licensors as follows :-

(i) That they will obtain all necessary planning and other consents and comply with all the requirements of the Local or other Authority or Authorities having jurisdiction in the matter of the Underlessees using the consulting room as aforesaid

(ii) That they will communicate to the insurance company with whom the premises are insured against fire full particulars of the Underlessees use of the consulting room as aforesaid and will obtain the consent of that company

thereto and pay any additional premiums consequent thereafter
(iii) That they will henceforth indemnify and keep indemnified the
Licensors and each of them and their respective Estates and effects from
and against all actions proceedings costs claims demands and liability
however arising in respect of the use by the Underlessees of the consulting
room as aforesaid

(iv) Upon the execution of this Licence to pay to the Licensors their
Solicitors costs of and incidental to its preparation and execution and of
two duplicates thereof and will also pay the fees of the Estate Surveyors
of Ten pounds for the approval of the within Licence

THE Underlessees as a separate covenant with the Licensee HEREBY
JOINTLY AND SEVERALLY COVENANT to observe and perform the covenants and
conditions herein contained and to indemnify the Licensee and his estate
and effects against all actions proceedings costs claims and demands and
liability arising out of a breach thereof

IT IS HEREBY AGREED AND DECLARED that this licence shall not
operate as a waiver or release of the covenants contained in the Lease the
Licence and the Underlease respectively and on the part of the Licensee
and the Underlessees respectively to be performed and observed other than
as aforesaid

I N W I T N E S S whereof the Licensors the Licensee and the
Underlessees have hereunto set their hands and seals the day and year first
before written

SIGNED SEALED AND DELIVERED by
he said JOHN GORE PHILLIMORE
in the presence of :-

J. Gore
Highwayside,
London, EC2.
Secretary

SIGNED SEALED AND DELIVERED by
he said THE HONOURABLE ROBERT
GEORGE HUGH PHILLIMORE in the
presence of :-

P. Whitehead,
Highwayside,
Ship Lane Bottom,
Peppard, Essex.
Secretary

SIGNED SEALED AND DELIVERED by
he said SIMON JAMES MOSLEY
in the presence of :-

S. J. Mosley
28 St Julian's Farm Rd
West Norwood
Clerk

J. Gore

R. G. H. Phillimore

S. J. Mosley

SIGNED SEALED AND DELIVERED by
the said RIENZI FELIZ MORITZ
FERNANDO in the presence of :-

} *[Signature]*

SIGNED SEALED AND DELIVERED by
the said CLAUDE TRISTRAM NEWNHAM
in the presence of :-

} *[Signature]*

22
me - Marie Wicks

23 - 11 Batham Close, Billerica, Essex

24 - married woman

SIGNED SEALED AND DELIVERED by
the said EVELYN MARY CORNWALL
NEWNHAM in the presence of :-

} *[Signature]*

25
me - Amy R. Gardner

Address - Blythe Cottage

Station - Beaconsfield, Bucks
Housewife